

Telangana State Judicial (Service and Cadre) Rules, 2017

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State of Telangana - Act

Telangana State Judicial (Service and Cadre) Rules, 2017

TELANGANA

India

Telangana State Judicial (Service and Cadre) Rules, 2017

Rule TELANGANA-STATE-JUDICIAL-SERVICE-AND-CADRE-RULES-2017 of 2017

Published on 15 July 2017

Commenced on 15 July 2017

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Telangana State Judicial (Service and Cadre) Rules, 2017

Published vide Notification No. G.O.Ms. No. 59, dated 15.7.2017

G.O.Ms. No. 59. - In exercise of the powers conferred by Articles 233,234,235,237 read with the proviso to Article 309 and proviso to clause (3) of Article 320 of the Constitution of India and all other powers herein to enabling and in supersession of all existing Rules on the subject and in consultation with the High Court of Judicature at Hyderabad, the Governor of Telangana, hereby makes the following Special Rules in respect of the Telangana State Judicial Service.

1.

Short title and commencement.

- 1. These rules may be called "The Telangana State Judicial (Service and Cadre) Rules, 2017."

2.

They shall come into force with effect from 15.07.2017.

2. Definitions.

- In these rules unless the context otherwise requires,-

(a)

"Academy" means the State Judicial Academy;

(b)

"Approved Probationer" means a member of the service who has satisfactorily the probation in such service;

(c)

"Cadre" means the post in each category of service;

(d)

"Cadre Strength" means the number of posts permanent as well as temporary in the cadre;

(e)

"Confirmed Member" means a member of the service who has been confirmed in accordance with these Rules;

(f)

"Direct Recruitment" means appointment of a person; who is not in the service of the Government of India or the Government of the State; to any category in the service through the process of inviting applications directly from all eligible and qualified persons;

(g)

"Government" means the Government of the State;

(h)

"Governor" means the Governor of the State;

(i)

"High Court" means the High Court of Judicature at Hyderabad;

(j)

"Official Gazette" means the Telangana State Gazette.

(k)

"Officiation" - a person is said to be officiating in the post since the date of his promotion till he is confirmed/regularised in that post;

(l)

"Promotion" means the appointment of a member of any category in the service to a higher category in the service carrying higher scale of pay;

(m)

"Recruitment by transfer" means appointment of a person; who at the time of his first appointment thereto is either a confirmed member or any approved probationer in any other category of the service or any other service through the process of inviting applications from all eligible and qualified persons;

(n)

"Schedule" means Schedule appended to these Rules;

(o)

"Service" means the Telangana State Judicial Service;

(p)

"State" means the State of Telangana;

3.

Constitution of Service.

- 1. There shall be constituted a State Service known as "The Telangana State Judicial Service"

(2)

The service shall consist of the following categories,-

District Judges; Senior Civil Judges and Civil Judges:

(3)

The cadre strength of the above three categories shall be, as fixed by the Government as per the need and in consultation with the High Court;

Provided that among the category of District Judges, 25% of the cadre strength thereof who have put in not less than five years of service shall be classified as "Selection Grade District Judges" and 10% of the cadre strength who have put

in not less than three years of service as selection Grade District Judges shall be classified as "Super Time Scale District Judges".

Interpretation:

I. The expression "District Judge" includes, Chief Judge and Additional Chief Judge of the City Civil Courts; Chief Judge and Additional Chief Judge of the City Small Causes Courts; Sessions Judge and Additional Sessions Judge; Metropolitan Sessions Judge and Additional Metropolitan Sessions Judge; Director, Additional Director and Senior Faculty Member of the Academy; Chairman, the A.P. Sales Tax Appellate Tribunal; Chairman, Land Reforms Appellate Tribunal; Presiding Officer, the State Transport Appellate Tribunal, Chairman, the Tribunal for Disciplinary Proceedings and Members; Chairman, the Industrial Tribunal; Presiding Officer of the Labour Court; Judge, Family Court; Judge, Mahila Court; and Additional District Judge;

II. The expression "Senior Civil Judge" includes, Additional Judge of the City Civil Courts, Additional Judges of the City Small Causes Courts, Deputy Director of the Academy, Chief Metropolitan Magistrate, Additional Chief Metropolitan Magistrate, Chief Judicial Magistrate and Assistant Sessions Judge;

III. The expression "Civil Judge" includes, Assistant Judge of the City Civil Courts, Rent Controller; Assistant Director and Administrative Officer of the Academy, Judicial Magistrate of First Class, Metropolitan Magistrate, Special Judicial Magistrate for Railways, Metropolitan Magistrates for Municipal and Juvenile Courts;

4.

Appointment.

(1)

Appointing Authority:

(a)

The Governor of the State shall be the Appointing Authority for the categories of District Judges and Civil Judges.

(b)

The appointment to the category of Senior Civil Judges shall be by means of promotion from the category of Civil Judges, by the High Court.

(2)

Method of Appointment:

(a)

Appointment to the class of Selection Grade and Super Time Scale shall be made on promotion on the basis of merit-cum-seniority, from among the cadre strength of District Judges.

(b)

"Appointment to the category of District Judges shall be made :

(i)

By Direct Recruitment

(ii)

By Transfer on the basis of merit through a Limited Competitive Examination (Accelerated Recruitment by Transfer), and

(iii)

By Promotion from among the Senior Civil Judges.

Provided that 25% of the cadre strength shall be filled up by direct recruitment from among the eligible Advocates on the basis of written examination and viva voce test as prescribed by the High Court;

10.

% of the cadre strength shall be filled up by Transfer through limited competitive examination of Senior Civil Judges who have put in not less than five years of qualifying service by the end of 31st March of the year; and if the candidates are not available for this 10% of cadre strength, or are not able to qualify in the examination in a panel year, then, the vacant posts in this cadre strength are to be filled up by regular promotion in accordance with these Rules, and

65.

% of the cadre strength shall be filled up by Promotion from among the category of Senior Civil Judges who have put in at least 5 years of qualifying service by the end of 31st March of the year on the basis of seniority-cum-merit.

(c)

Appointment to the category of Senior Civil Judges shall be by promotion from the category of Civil Judges, who have put in not less than five years of qualifying service, selected by the High Court on the basis of seniority-cum-merit.

(d)

(i)

Appointment to the category of Civil Judges shall be by direct recruitment from among the eligible Advocates on the basis of written and viva voce tests as prescribed by the High Court; and

(ii)

Recruitment by transfer on the basis of written and viva voce tests as prescribed by the High Court from among the confirmed members or approved probationers of, -

(a)

Categories 5 and 6 of Division-I and Categories 1 to 4 and category 5(a) and (b) of Division-II of the Telangana High Court Service;

(b)

Categories 1 to 6 of the Telangana Judicial Ministerial Service;

(c)

Assistant Public Prosecutors, Senior Assistant Public Prosecutors, Additional Public Prosecutors Grand-II of Telangana State Prosecution Service;

(d)

Section Officers in the Law Department of the Secretariat;

(e)

Section Officers in the Legislature Department; and

(f)

Managers of the Offices of the Advocate General; Government Pleaders; Public Prosecutors;

Provided that one out of every five vacancies in the cadre shall be filled up by means of recruitment by transfer.

5.

Eligibility.

(1)

District Judges: A person to be appointed to the category of District Judges by direct recruitment shall be:

(a)

One, who has been practicing for not less than 7 years as an Advocate as on the date of publication of the advertisement in the news papers;

Provided that a full time salaried Law Officer in the Employment of the Central Government or State Government or any Public Corporation or Body constituted by statute shall not be eligible for the post of District Judge.

(b)

A person, who has completed thirty five years of age and who has not completed forty five years of age as on the first day of the month in which the notification inviting applications for such appointment is published in the newspapers.

Provided that the upper age limit in respect of persons belonging to the Scheduled Castes; the Scheduled Tribes and Backward Classes is relaxable by three years.

(c)

One who has good character, and is free from any infirmity, which renders him, unfit for such appointment.

Provided further that no person shall be eligible for appointment to the category if:

(i)

he is not a citizen of India;

(ii)

he is dismissed from service by any High Court.

(iii)

he has been convicted of an offence involving moral turpitude;

(iv)

he is or has been permanently debarred or disqualified by the High Court or Union Public Service Commission or any State Public Service Commission from appearing for examinations or selections conducted by it;

(v)

he directly or indirectly influences the recruitment authority by any means for his candidature;

(vi)

he has more than one wife living;

(vii)

she marries knowingly a person having a wife; and

(viii)

he is arrested in connection with any crime involving moral turpitude and concerned with the same.

Provided that no Senior Civil Judge who is facing disciplinary charges or has undergone or is undergoing punishment for any irregularity in discharge of his/her duties shall be eligible for appointment by Accelerated Recruitment by Transfer or by Regular promotion to the post of District Judge.

(2)

Civil Judges:

(a)

By direct recruitment. - A person to be appointed to the category of Civil Judges shall be:

(i)

One, who has been practicing for not less than 3 years as an Advocate as on the date of publication of the advertisement in the news papers;

(ii)

A person who has not completed thirty five years of age as on the first day of the month in which the notification inviting applications for such appointment is published in the newspapers.

Provided that the upper age limit of thirty five years is relaxable by five years in respect of the persons belonging to Scheduled Castes, Scheduled Tribes and Backward Classes.

Provided further that in the case of a candidate who served in the defence services of the Indian Union and who is otherwise qualified and suitable, the period of service rendered by him in the defense service, shall be excluded in computing the age for appointment by direct recruitment.

(iii)

One who has good character, and is free from any infirmity, which renders him/her, unfit for such appointment.

Provided further that no person shall be eligible for appointment to the category if:

(i)

he/she is not a citizen of India;

(ii)

he/she is dismissed from service by any High Court, Government and Statutory or Local Authority;

(iii)

he/she has been convicted of an offence involving moral turpitude;

(iv)

he/she is or has been permanently debarred or disqualified by the High Court or Union Public Service Commission or any State Public Service Commission from appearing for examinations or selections conducted by it;

(v)

he/she directly or indirectly influences the recruitment authority by any means for his candidature;

(vi)

he has more than one wife living;

(vii)

she marries knowingly a person having a wife; and

(viii)

he/she is arrested in connection with any crime involving moral turpitude and concerned with the same.

(b)

Recruitment by Transfer. - A person to be appointed to the category of Civil Judges by recruitment by transfer shall be:

(i)

A holder of a degree in Law awarded by any University established by Law in India.

(ii)

A person who has not completed forty eight years of age as on the date first day of the month in which the notification inviting applications for such appointment is published in the newspapers; and

(iii)

A person who is maintaining good character and conduct.

Provided that no person who is facing disciplinary charges or has undergone any punishment or is in subsisting punishment for any irregularity in discharge of his duties shall be eligible for appointment by recruitment by transfer.

6.

Recruitment, methodology for conducting examination, selection process, fee etc.

(a)

On or before the 15th December of every year in the case of the Civil Judge and in the case of District Judges the 15th March of every year, the Recruitment Wing shall be informed of the number of existing vacancies and the vacancies that are likely to occur within one year for the post of Civil Judge and District Judge by the concerned Registry.

(b)

The Recruitment Wing shall place the vacancy position of Civil Judges in the official web site of the High Court by 15th January every year and the vacancy position of District Judges in the Official Website of the High Court by 31st March of every year.

(c)

Every year, the High Court, by advertisement in at least two newspapers, one in Telugu and the other in English and in the Official Gazette of the Government, invite applications in such form as it may determine from the intending candidates, who possess the qualifications for filling the vacancies, indicating, inter-alia, the eligibility criteria, the syllabus, the number of marks allotted for written examination, the qualifying marks to be secured by a candidate, the number of marks allotted for the viva voce, the ratio in which the candidates are to be called for the written examination / viva voce. The advertisement shall also specify that the recruitment to these posts shall be made in accordance with Telangana State Judicial (service & Cadre) Rules, 2017.

(d)

For the purpose of short listing the candidates, who will be applying for the post of District Judge (Entry level) by direct recruitment and Accelerated Recruitment by Transfer and for the post of Civil Judge, the High Court may, if necessary hold a screening test comprising of multiple choice objective type questions, on OMR Technology basis, and call upon the candidates in the ratio of 1:10 of the available vacancies, who have secured 40% and above marks in the Screening Test for a written examination.

Provided that if there are more than one candidate who have secured identical marks in the screening test, all such candidates shall be called for the written examination.

(e)

(i)

The High Court shall hold written examinations consisting of three papers i.e. (I) Civil Law, (II) Criminal Law and (III) English (Translation and Essay Writing) carrying 100 marks each, having a duration of 3 hours each respectively, for the post of Civil Judge and for the post of District Judge.

(ii)

The medium of examination for writing the examination is English.

(iii)

The syllabus for the screening test and written examination for Civil Judge/ District Judge recruitment is as detailed in Schedules C and D appended to the Rules.

(f)

The candidate applying for being appointed under Direct Recruitment who secures not less than 55% of marks in each paper and not less than 60% of marks in aggregate in the written examination shall be eligible for viva voce carrying 50 marks.

Provided that the candidates belonging to Backward Class category who secure not less than 50% marks in each paper and not less than 55% of marks in aggregate in the written examination shall be eligible for the Viva Voce

Provided that the Scheduled Castes and Scheduled Tribes candidates who secure not less than 45% marks in each paper and not less than 50% of marks in aggregate in the written examination shall be eligible for the viva voce.

Provided further that, the High Court shall call the candidates for viva voce for the post of Civil Judge / District Judge in the ratio of 1:3 of the available vacancies to the successful candidates.

Provided that if there are more than one candidate who have secured identical cut off marks, for maintaining the ratio of 1:3, all such candidates shall be called upon to appear for Viva-Voce.

Provided also that only such candidate who secures at least 60% marks in aggregate in written examination and viva voce and above in respect of OC/BC category and 50% marks in aggregate in written examination and viva voce and above in SC/ST category shall be eligible for selection.

(g)

The same pattern of examination including the syllabus, which is fixed for direct recruitment of District Judges (Entry Level) shall be held for the promotion of District Judges under Accelerated Recruitment by Transfer.

Provided that the candidate applying under Accelerated Recruitment by Transfer who secures not less than 55% of marks in each paper and not less than 60% of marks in aggregate in the written examination shall be eligible for Viva-Voce carrying 50 marks.

(h)

The object of the written examination is to test the academic knowledge of the candidates.

(i)

The object of the Viva-Voce is to assess the suitability of the candidate for the cadre by judging the mental alertness, knowledge of law, clear and logical exposition, balance of judgment, skills, attitude, ethics, power of assimilation, power of communication, character and intellectual depth and the like of the candidate.

(j)

A candidate who has committed any copying or misconduct during the course of Screening Test/Written Examination or has been convicted in a Criminal Case or is compulsorily retired, removed or dismissed from Judicial Service or any other service or could not successfully complete probation period of any post in Judicial Service shall not be eligible to appear for the competitive examination.

(k)

Any Officer having found to be of doubtful integrity in any year, shall not be eligible to appear for the post of District Judge by promotion through Limited Departmental Competitive Examination (Accelerated Recruitment by Transfer).

(l)

Any candidate who remains absent for the viva voce either for the post of District Judge or Civil Judge, shall be deemed to have been disqualified for selection.

(m)

The decision of the High Court as to the eligibility or other wise of a candidate for admission to the written examination and viva voce shall be final. Only candidates who are issued with Hall Tickets shall be admitted for the examination.

(n)

The High Court shall prepare in the order of merit, a list of candidates (group-wise) eligible for appointment either to the post of Civil Judge or District Judge. The number of candidates to be included in the list shall be equal to the number of vacancies notified. The list of provisionally selected candidates will be placed in the official website of the High Court.

Besides the selection list of Civil Judge/ District Judge, the High Court shall prepare wait list, equal to ten percent (group-wise) of the number of vacancies notified for recruitment or one, whichever is higher. The said waiting list will be valid only for six months from the date of preparation or till the issue of next notification, which ever is earlier.

(o)

The High Court shall recommend the names of the selected candidates to the Government by completing the selection process.

(p)

The Government within two months of receipt of the names of the selected candidates being forwarded to it, shall complete the process of verification of the antecedents of the candidates and medical examination. No person selected for appointment by direct recruitment shall be appointed unless he/she is certified by the Medical Authority specified by the High Court for the purpose that he/she is medically fit to discharge the duties of the post to which he / she is selected for appointment.

(q)

FEE: Every candidate for direct recruitment may be required to pay Rs. 500/- or such fee as may be fixed by the High Court from time to time in the notification inviting applications; provided that in the case of a candidate belonging to Scheduled Castes or Scheduled Tribes, the fee payable shall be one half of the fee specified in the notification for other candidates.

(r)

- All necessary steps not provided for in these rules for recruitment under these rules, shall be decided by the High Court.
- (s)
- Joining time for Appointment:
- (i)
- A candidate selected by direct recruitment shall report for duty before the Authority on the date specified in the order of appointment.
- (ii)
- Notwithstanding anything contained in sub-rule (i), the High Court may, on the application of the candidate, if satisfied that there are good and sufficient reasons for doing so, by order in writing, grant such further time as deemed necessary.
- (iii)
- The name of the candidate who fails to assume charge of the post within the time specified in the sub-rule (i) or within the further time granted under sub-rule (ii) shall stand deleted from the list of selected candidates and he/she shall cease to be eligible for appointment.
- 7.
- Reservation.
- Rules 22 and 22-A of the Telangana State and Subordinate Service Rules, 1996 insofar as they relate to Scheduled Castes, Scheduled Tribes, Backward Classes, Women and one percent for Physically handicapped [Orthopaedically Handicapped (lower portion of the body)] persons shall apply to the appointments to be made by direct recruitment, and Scheduled Castes and Scheduled Tribes in so far as it relates to recruitment by transfer.
- 8.
- Training.
- (a)
- District Judges: Every person who is appointed by direct recruitment to the category of District Judges shall undergo training in the Academy, for a period of six months.
- (b)
- Civil Judges: Every person who is appointed to the category of Civil Judges shall undergo training in the Academy, for a period of one year:
- Provided that the High Court, owing to the exigency in the service, may prescribe the period of training less than the period prescribed in clauses (a) and (b) herein above.
- 9.
- Probation and officiation.
- (a)
- Every person who is appointed to the category of District Judges by direct recruitment from the date on which he joins duty shall be on probation for a period of two years;
- (b)
- Every person who is appointed to the category of District Judges otherwise than by direct recruitment shall be on officiation for a period of two years;
- (c)
- Every person who is appointed to the category of Civil Judges shall be on probation for a period of two years;
- (d)
- The period of probation or officiation, may be extended by the High Court by such period, not exceeding the period of probation or officiation, as the case maybe, as specified in clauses (a) to (c) herein above;
10. Confirmation/Regularisation.
- A person who has been declared to have satisfactorily completed his period of probation or officiation as the case may be, shall be confirmed as a full member of the service in the category of post to which he had been appointed or promoted, as against the substantive vacancy which may exist or arise w.e.f. the date.
- 11.
- Discharge of unsuitable probationers.
- If at the end of the period of probation or the period of extended probation, the Appointing Authority on the recommendation of the High Court, considers that the probationer is not suitable to the post to which he has been

appointed, may by order discharge him from service after giving him one month's notice or one month's pay in lieu thereof.

12.

Reversion.

- At the end of the period of officiation or extended period of officiation, the High Court, considers that, the person is not suitable to hold the post in which he is officiating, may by order revert him to the post, which he has held prior to his promotion or recruitment by transfer.

13.

Seniority.

(a)

District Judges: Seniority of the persons appointed to the category of District Judges by direct recruitment as well as recruitment by transfer shall be fixed as per the forty point roster prescribed in Schedule-A;

(b)

Civil Judges: Seniority of the persons appointed to the category of Civil Judges by direct recruitment as well as recruitment by transfer shall be fixed as per the twenty point roster prescribed in Schedule-B;

(c)

Inter se seniority: Whenever two or more persons are appointed simultaneously to the service, the appointing authority may at the time of passing, an order of appointment fix the inter se seniority as per the order of merit;

14.

Temporary appointments.

(1)

Where it is necessary in the public interest owing to the exigency in the service to fill up immediately vacancies in the category of District Judges and there would be undue delay in making such appointments in accordance with Rules 4, 5 and 6, the Governor may in consultation with the High Court make temporary appointments by transfer from among the category of Senior Civil Judges.

(1a)

[Where it is necessary in public interest, owing to exigencies of service, to fill up immediately and vacancies in the category of senior civil judges and there is unavoidable delay in making such appointments in accordance with sub-rule (2)(c) of Rule 4, the High Court may make promotions from the category of Civil Judges to the posts of Senior Civil Judges from amongst the eligible Civil Judges who have put in not less than five (5) years of qualifying service, selected by the High Court on the basis of seniority-cum-merit, on temporary basis, with a rider that the incumbents shall not be regarded as members of the cadre of Senior Civil Judges, till they are promoted as per their turns as Senior Civil Judges on regular basis.]

[Inserted by Notification No. G.O. Ms. 9, dated 24.3.2018 (w.e.f. 15.7.2017).]

(2)

Where it is necessary in the public interest owing to the exigency in the service to fill up immediately vacancies in the category of Civil Judges and there would be undue delay in making such appointment in accordance with Rules 4, 5 and 6, the Governor may in consultation with the High Court make temporary appointments from among the confirmed members or approved probationers of any category specified in clause (d) (ii) of sub-rule (2) of Rule 4:

Provided that no person shall be appointed under sub-rule (2) unless he is eligible to be appointed as per sub-rule (2) of Rule 5.

15.

Ad hoc appointment of Fast Track Court Judges.

- Where it is necessary in the public interest, the Governor may in consultation with the High Court make ad hoc appointments, in accordance with the Special Rules framed in regard thereto and the persons appointed on ad hoc basis shall not be regarded as members of the cadre.

16.

Age of Superannuation.

- The age of superannuation of a member of the service shall be sixty years or such further age as is fixed by the Government from time to time.

17.

Postings and Transfers.

- All postings other than first appointments and reappointments to the service, and transfers in the service shall be made by the High Court.

18.

Appeal.

- No appeal lies against the order of discharge or reversion.

19.

Conditions of Service.

(a)

Pay and allowances: Pay and allowances of members of the service shall be as recommended by the National Judicial Pay Commission from time to time and accepted by the Government.

(b)

A member of the service shall be eligible for such leave and leave salary and such travelling allowance as is admissible to the member of the Indian Administrative Service governed by the All India Service Leave Rules, 1955 for the time being in force.

(c)

A member of the service shall be eligible for the other pensionary benefits regulated under the All India Service (death-cum-retirement benefits) Rules, 1958, which are in force at the time of his appointment.

(d)

The Telangana Civil Services (Classification, Control and Appeal) Rules, 1991, the Telangana Civil Services (Conduct) Rules, 1964, the Fundamental Rules, the Telangana Leave Rules, 1933, and the Pension Rules for the time being in force shall insofar as they may be applicable, and except to the extent expressly provided in these Rules, govern members of the service in the matter of their pay, allowances, leave, leave salary, pension and other conditions of service.

20.

Addition of certain service for the purpose of pension.

- An advocate appointed to the service as Civil Judge or District Judge by direct recruitment shall be entitled to reckon as service qualifying for superannuation pension, the actual period of practice put in by him at the Bar not exceeding three years or seven years respectively.

21.

Tests.

- A person appointed to the category of Civil Judges and District Judges by direct recruitment is exempted from passing any Accounts test, language test and other tests prescribed under the General Rules of the Telangana State and Subordinate Service Rules, 1996, and a certificate issued by the Academy in token of having successfully completed the training shall be deemed to be a certificate of pass in the relevant tests.

The Academy shall prepare the necessary curriculum for imparting training to the officers of the respective categories as regards the above tests.

22.

Resignation.

- A member of the service may resign by tendering his resignation in writing and such resignation shall come into effect on the date of its acceptance, on the recommendation of the High Court, by the Governor.

23.

Retirement in public interest.

- Notwithstanding anything contained in these Rules, the Governor, on the recommendation of the High Court containing the reasons in writing, if he is of the opinion that it is in the public interest to do so, has the absolute right to retire any member of the service who has attained the age of 50, 55 or 58 years, by giving him notice of not less than three months in writing or three months pay and allowances in lieu thereof.

24.

Relaxation of Rules.

- The Governor in consultation with the High Court if is satisfied that operation of any of the provisions of these Rules causes or likely to cause undue hardship in any particular case or class of cases may dispense with or relax such

provisions of the rules deem proper, just and equitable.

25.

Applicability of General Rules.

- The Telangana State and Subordinate Service Rules, 1996 which are not inconsistent with these Rules and to the extent not covered by these Rules, shall apply to the Service.

26.

Repeal and Savings.

(1)

The A.P. State Judicial Service Rules, 2007 which are in force immediately before the commencement of these Rules shall stand repealed.

(2)

The appointments made or actions initiated prior to the Commencement of these Rules shall not be effected and are deemed to have been made or initiated under these Rules.

A

[See Rule 13 (a)]

[40 Point Roster governing seniority of District Judges]

01.

Direct Recruitment

02.

Accelerated recruitment by transfer

03.

Regular promotion

04.

Regular promotion

05.

Direct Recruitment

06.

Regular promotion

07.

Regular promotion

08.

Regular promotion

09.

Direct Recruitment

10. Regular promotion

11. Regular promotion

12. Accelerated Recruitment by transfer

13. Direct Recruitment

14. Regular promotion

15. Regular promotion

16. Regular promotion

17. Direct Recruitment

18. Regular promotion

19. Regular promotion

20. Regular promotion

21. Direct Recruitment

22. Accelerated recruitment by transfer

23. Regular promotion

24. Regular promotion

25. Direct Recruitment

26. Regular promotion

27.
Regular promotion
28.
Regular promotion
29.
Direct Recruitment
30.
Regular promotion
31.
Regular promotion
32.
Accelerated Recruitment by transfer
33.
Direct Recruitment
34.
Regular promotion
35.
Regular promotion
36.
Regular promotion
37.
Direct Recruitment
38.
Regular promotion
39.
Regular promotion
40.
Regular promotion

B

[See Rule 13(b)]

(20 point Roster governing seniority of Civil Judges)

1. Direct Recruitment
2. Direct Recruitment
3. Direct Recruitment
4. Direct Recruitment
5. Recruitment by transfer
6. Direct Recruitment
7. Direct Recruitment
8. Direct Recruitment
9. Direct Recruitment
10. Recruitment by transfer
11. Direct Recruitment
12. Direct Recruitment
13. Direct Recruitment
14. Direct Recruitment
15. Recruitment by transfer
16. Direct Recruitment
17. Direct Recruitment
18. Direct Recruitment
19. Direct Recruitment
20. Recruitment by transfer

C

[See Rule 6 (e)(iii)]

Syllabus for the screening test if any and written examination for the recruitment of District Judges:

Constitution and Civil Laws

(1)

Code of Civil Procedure, 1908

(2)

Indian Evidence Act ,1872

(3)

Land Acquisition Act, 1894

(4)

Tenancy Laws including Land Reforms and Ceiling

(5)

Constitution of India and Administrative Law

(6)

Transfer of Property Act,1882

(7)

Indian Contract Act,1872

(8)

Motor Vehicles Act, 1988

(9)

Specific Relief Act, 1963,

(10)

A.P.Prohibition Act, 1995

(11)

Laws on Inheritance, Succession, Marriage, Divorce, Adoption, Guardianship and Custody including incountry and intercountry adoptions

(12)

Family Courts Act.

(13)

Indian Easements Act, 1882

(14)

Law of Torts

(15)

Limitation Act, 1963

(16)

Law relating to Intellectual Property

(17)

Stamps & Registration Act

(18)

Sale of Goods Act

(19)

Guardian & Wards Act 20)Indian Trusts Act

Criminal Laws

(01)

Code of Criminal Procedure, 1973

(02)

Indian Evidence Act, 1872

(03)

Indian Penal Code, 1860

(04)

Protection of Civil Rights Act, 1955

(05)

Scheduled Caste and the Scheduled Tribes (Prevention of Atrocities) Act, 1989.

(06)

Negotiable Instrument Act, 1881 (Section 138 to 147)

(07)

Narcotic Drugs and Psychotropic Substances Act, 1985

(08)

Prevention of Corruption Act, 1988

(09)

A.P. Excise Act, 1968

(10)

Wild Life Protection Act, 1972

(11)

Juvenile Justice Act, 1986 (Care and Protection of Children) Act

(12)

Electricity Act, 2003

(13)

Protection of Women from Domestic Violence Act

(14)

Arms At

(15)

Forest Act

D

[See Rule 6 (e)(iii)]

Syllabus for the screening test / written examination for the recruitment of Civil Judges:

Civil Laws:

(1)

Code of Civil Procedure, 1908

(2)

Indian Contract Act, 1872

(3)

Hindu Marriage Act, 1955

(4)

Hindu Succession Act, 1956

(5)

Indian Easements Act, 1882

(6)

Specific Relief Act, 1963

(7)

Limitation Act, 1963

(8)

Transfer of Property Act, 1882

(9)

Civil Rules of Practice

(10)

Registration Act, 1908 and Stamp Act, 1899

(11)

A.P. Land Encroachment Act, 1905

(12)

Andhra Pradesh Buildings (Lease, Rent and Eviction) Control Act, 1960

(13)

Indian Evidence Act,1872

Criminal Laws:

(1)

Code of Criminal Procedure,1973

(2)

Indian Penal Code,1860

(3)

Indian Evidence Act,1872

(4)

Negotiable Instruments Act, 1881

(5)

Protection of Women from Domestic Violence Act,2005

(6)

Criminal Rules of Practice

(7)

A.P. Excise Act, 1968

(8)

A.P. Gaming Act,1974

(9)

Juvenile Justice (Care and Protection of Children) Act

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